

HOUSE BILL 1688

By Lynn

AN ACT to amend Tennessee Code Annotated, Title 68,
Chapter 11, relative to assisted-care living
facilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as "The Frank J. Lake III Act."

SECTION 2. Tennessee Code Annotated, Section 68-11-207(h), is amended by redesignating the existing language as subdivision (h)(1) and adding the following language as a new subdivision (h)(2):

(2) If the commission provides an assisted-care living facility a period of up to thirty (30) days for further fact finding, as described in subdivision (h)(1), then the commission shall post the following notice on the commission's website in such place designated for the assisted-care living facility's licensure status:

POSSIBLE DISCIPLINARY ACTION IS PENDING AND THE RESOLUTION OF WHICH WILL BE DETERMINED BY THE HEALTH FACILITIES COMMISSION. THIS DOES NOT CONSTITUTE AN ADMISSION OF ANY DEFICIENCY BY THE FACILITY.

SECTION 3. Tennessee Code Annotated, Section 68-11-207(e)(4), is amended by redesignating the existing language as subdivision (e)(4)(A) and adding the following language as a new subdivision (e)(4)(B):

(B) If the commission places an assisted-care living facility on probation, then the commission shall post the following notice on the commission's website in such place designated for the assisted-care living facility's licensure status:

POSSIBLE DISCIPLINARY ACTION IS PENDING AND THE RESOLUTION OF WHICH WILL BE DETERMINED BY THE HEALTH FACILITIES COMMISSION. THIS DOES NOT CONSTITUTE AN ADMISSION OF ANY DEFICIENCY BY THE FACILITY.

SECTION 4. Tennessee Code Annotated, Section 68-11-207(i), is amended by adding the following as a new subdivision:

(8) If a long-term care ombudsman is contacted by an assisted-care living facility, then such ombudsman must notify each resident or each resident's guardian, conservator, or representative.

SECTION 5. Tennessee Code Annotated, Title 68, Chapter 11, Part 2, is amended by adding the following as a new section:

In addition to any other disclosure required by this part, prior to the admission of a resident to an assisted-care living facility pursuant to this chapter or prior to the execution of a contract for the care of a resident in such facility, whichever occurs first, the facility shall provide in writing to the resident or the resident's guardian, conservator, or representative the website link that lists the current licensure status of the assisted-care living facility and any history of disciplinary actions for such facility.

SECTION 6. This act takes effect July 1, 2026, the public welfare requiring it.